

Control Number: FY25-0005

Justification and Approval (J&A) Modified
for Federal Acquisition Regulation (FAR) 13.501

1. Identification of the Agency and Contracting Activity:

The requiring activity is the Defense Health Agency (DHA), Patient Safety Program. The Contracting Activity for this acquisition will be Professional Services Contracting Division (PS-CD), Defense Health Agency Contracting Activity (DHACA).

2. Nature and/or Description of Action being Approved:

The action being approved is for an individual firm fixed-price contract under Federal Acquisition Regulation (FAR) 13.5. The final option period of Contract N6264519C0004 expires 28 February 2025. The services currently provided will need to continue under a new bridge contract. The new DAD-MA Patient Safety Program for Military Treatment Facilities competed action is currently in the evaluation phase with Professional Services Contracting Division (PS-CD) with pending award no later than 31 August 2025. The timeline for award is very tight and as a precaution the Patient Safety Program is requesting a 6-month bridge contract consisting of one (1) 2-month base period, two (2) 2-month option periods.

3. Description of Supplies/Services:

The proposed contractor for this action [REDACTED]

This requirement is to provide the expertise and experience required by Patient Safety Specialists (PSS) at inpatient Medical Treatment Facilities (MTFs) and recognizes the roles of PSS at smaller facilities in areas of quality, risk management, and compliance oversight. It also clarifies the intent and expected range of annual review deliverables submitted by MTF PSSs.

The PSS are utilized to foster a culture of patient safety, reliability, collaborative teamwork, and process improvement. The PSS engages in proactive risk assessment, risk mitigation, and process improvement. When events do occur, the PSS leads efforts to analyze events, identify root causes and contributing factors, and develop corrective action plans that include provision for ongoing compliance monitoring. The PSS follow prescribed processes for responding to Sentinel Events, Department of Defense (DoD) Reportable Events, and use literature-proven strategies to reduce events and improve care. Patient Safety, in collaboration with other activities including Performance Improvement and Risk Management, promotes a culture of safety in

Controlled by: Defense Health Agency (DHA)
Controlled by: DHACA PS-CD
CUI Category(ies): Source Selection
Limited Dissemination Control: *(FED Only)*
POC [REDACTED]

CUI

Source Selection Information - See FAR 2.101 and 3.104-4

which errors are proactively identified and reported freely without retribution. Effort is made to reduce variability and vulnerability for error in processes.

Period	Period of Performance	Estimated Value	Type of Funding
Base Period	1 MAR 2025 – 30 APR 2025	██████████	O&M
Option Period 1	1 MAY 2025 – 30 JUN 2025	██████████	O&M
Option Period 2	1 JUL 2025 – 31 AUG 2025	██████████	O&M
FAR 52.217-8	N/A (per PD 06-02) *		
Total		██████████	

*Per DHA Policy Directive 06-02 Item 5.2, “While options are allowed under bridges, DHA prohibits inclusion of the extension of services clause, FAR 52.217-8, in any bridge contract action.”

4. Statutory Authority Permitting the Sole Source Acquisition:

In accordance with 41 United States Code (U.S.C.) 1901(e), as implemented under FAR 13.5, sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

5. Rationale Justifying Use of Authority Cited:

The mandated DoD Patient Safety Program of which these services support is critical to the Military Health System. If action is not taken, fifteen full-time PSS will be vacant at twelve medical treatment facilities, and the safety and quality of services will suffer. Due to the major undertaking of consolidating contracts from separate DoD branches to the DHA more time may be needed to award the new contract. With a current contract in plac ██████████ is the only source capable of meeting the requirements.

Awarding a contract to another company would result in unacceptable delays in obtaining the required services and in-addition a new contract would not be completed on time. It is also unreasonable to transition the provisioning of services to another contractor for just a two to six-month period of performance when recruitment of workers, administrative matters, and costs are considere ██████████ already has workers in place, is successfully meeting the requirements, and has an established system for managing this specific contract. Changing contractors for what may be just a two to six-months would present a high-risk of disrupting services with turnover of workers, vacancies, and setbacks from a challenging learning curve. The significant amount of effort and resources required for such a short-term contract would factor into a contractor’s pricing to make it worthwhile. The price of a potential two to six-month contract would likely be much higher than an award of a bridge to the existing contract at the current unit price.

6. Efforts to Obtain Competition:

The requirement for a new contract is currently in evaluation by a source selection board and was competed as a 100% small business set aside for North American Industry Classification System (NAICS) 541611, Administrative Management and General Management Consulting Services.

The contract combines incumbent contracts from multiple armed services [Navy, Air Force and DHA], providing more efficient and consistent services to the involved MTFs.

A Notice of Intent regarding this bridge contract will be published on sam.gov with the same NAICS, accompanied by a redacted version of this Justification and Approval, when approved. All resulting requests and responses will be addressed prior to award of the bridge contract. No exceptions listed in FAR 5.202 apply to this action.

7. Actions to Increase Competition/Remove or Overcome any Barriers to Competition:

The new contract currently being competed combines multiple expiring contracts with the Navy and Air Force, allowing for a larger, more appealing contract to potential offerors, and improved prices. Considering the expiring contract for the Navy resulted in competition, and the new competed contract is also a Total Small Business Set Aside resulting in multiple responses, shows the agency's efforts to encourage competition among qualifying small businesses.

8. Market Research:

Market Research was conducted through the issuance of Request for Information (RFI) number HT0011-24-RFI-0187, dated 15 February 2024 and closed on 12 March 2024. Results of the RFI yielded ten vendors responding, including large and small businesses. Of the responses, a majority were from small businesses. When evaluated only three small business vendors had comparable experience to meet requirements of the Performance Work Statement included in the RFI, and on the surface demonstrated the capability to meet the needs.

While the results showed three potential offerors, the effort inherent in fully competing the short-term bridge contract also includes the risk of getting little or no competition resulting from the efforts. The results are consistent with the effort being made in competing the new contract. The responses also did not overshadow other considerations: the previously mentioned risks inherent in transitioning between contractors, and most especially the risk of a gap in service, losing patient safety and support.

9. Other Facts:

a. Procurement History:

(1) Is this a new requirement? No.

(2) If 9.a.(1) is No, was the action just prior to this one competed?

Yes. The prior requirement was competed as a Total Small Business Set Aside. The pending award of the follow-on contract was also competed as a Total Small Business Set Aside.

(3) If 9.a.(2) is Yes, what has changed where this action cannot be competed?

Short term bridge is needed for continuity of services.

b. Additional Information: Not Applicable.

10. Interested Sources:

To date, no other sources have written to express an interest, beyond responses to the RFI. The RFI respondents are listed below:

Business Name	Business Size
[REDACTED]	Service Disabled Veteran Owned Small Business (SDVOSB)
[REDACTED]	SDVOSB
[REDACTED]	Native American Small Business
[REDACTED]	Large Business
[REDACTED]	Large Business
[REDACTED]	Large Business
[REDACTED]	Large Business
[REDACTED]	Native American Small Business
[REDACTED]	SDVOSB/Economically Disadvantaged Women-owned Small Business (EDWOSB)
[REDACTED]	8(a)/EDWOSB

Additionally, the notices required by FAR 5.201 shall be published with a redacted version of this approved Justification and Approval, and any proposals received shall be considered.

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11. Technical Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]
[REDACTED]
[REDACTED]

Patient Safety Network Liaison
DHA Medical Affairs

12. Requirements Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]
[REDACTED]
[REDACTED]

Chief Of Staff
DHA Medical Affairs

13. Fair and Reasonable Cost Determination:

I hereby determine the anticipated cost to the Government for this contract action will be fair and reasonable.

Basis for Determination:

Current contract prices relied on in the expiring contract will be utilized for determination of fair and reasonable pricing. At time of the contract award and at time of all options exercised, the contract prices were determined fair and reasonable. The Independent Government Cost Estimate and knowledge of the Contracting Officer will further support this decision.

[REDACTED]
[REDACTED]
[REDACTED]

Signed for:

DHA Contracting Officer
Professional Services - Contracting Division

14. Legal Review:

I have reviewed this justification and have found it to be legally sufficient.

[REDACTED]

[REDACTED]

Date: 2025.02.27 17:30:59 -05'00'

[REDACTED]

Attorney

Office of General Counsel

Review

I have reviewed this justification and find it adequate to support the sole source acquisition.

Concurrence

[REDACTED]

[REDACTED]

Date: 2025.02.28 17:37:36 -05'00'

[REDACTED]

Chief of the Contracting Office

DHA Contracting Activity

Approval

Based on the foregoing justification, I hereby approve the procurement of the Patient Safety Program Support, with a potential value [REDACTED] on sole source basis pursuant to the authority of 41 U.S.C. 1901, as implemented in FAR 13.5, subject to availability of funds, and provided that the supplies and/or services herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Competition Advocate

Defense Health Agency